

Sullivan

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
ANGEL NEGRON, KRISTIN DAWSON, STEVEN
WHALEY, YOLANDA MATOS, and D. C., an
infant by his mother and natural guardian
YOLANDA MATOS,

Plaintiffs,

**STIPULATION OF
SETTLEMENT AND ORDER OF
DISMISSAL**

09 Civ. 2128 (RJS)

-against-

THE CITY OF NEW YORK, JUAN ORTIZ,
MICHAEL DIAZ, KENNETH BAKER,
CHRISTOPHER JONES, SEAN CASEY, JOHN
SANTIAGO, PAUL ZAINO, AND RICHARD
LAUDMAN.

Defendants.
-----X

USDS SDNY DOCUMENT ELECTRONICALLY FILED DOC #: DATE FILED: 11/15/10

WHEREAS, plaintiffs Angel Negron, Kristin Dawson, Steven Whaley, and Yolanda Matos commenced this action by filing a complaint on or about March 9, 2009, alleging that the defendants violated their federal civil and state common law rights; and

WHEREAS, Yolanda Matos commenced this action on behalf of her infant son D.C. by filing a complaint on or about March 9, 2009, alleging, *inter alia*, violations of his state law rights and his civil rights pursuant to 42 USC § 1983; and

WHEREAS, defendants have denied any and all liability arising out of plaintiffs' allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. The City of New York hereby agrees to pay plaintiffs Angel Negrón, Kristin Dawson, Steven Whaley, and D.C. the sum of TWENTY TWO THOUSAND, FIVE HUNDRED (\$22,500.00) Dollars each, in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. The City of New York further agrees to pay plaintiff Yolanda Matos the sum of TEN THOUSAND (\$10,000.00) Dollars in full satisfaction of all claims, including claims for costs, expenses, and attorneys' fees. In consideration for the payment of these sums, plaintiffs agree to dismissal of all the claims against the defendant and to release the defendants, City of New York, Juan Ortiz, Michael Diaz, Kenneth Baker, Christopher Jones, Sean Casey, John Santiago, Paul Zaino, and Richard Laudman, and any present or former employees and agents of the City of New York or any agency thereof, from any and all liability, claims, or rights of action which were or could have been alleged in this action, including claims for costs, expenses, and attorneys' fees.

3. Plaintiffs shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of Status of Liens. If Medicare has provided payment and/or benefits for any injury or condition that is the subject of this lawsuit, prior to tendering the requisite documents to effect this settlement, Plaintiffs shall have notified Medicare and shall submit with the settlement documents a Medicare final demand letter for conditional payments. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. §1395y(b) and 42 C.F.R. §§411.22 through 411.26.

4. Settlement of this action with respect to plaintiff D.C. is conditioned on compliance with the provisions set forth in Rule 83.2(a) of the Local Civil Rules of this Court ("Settlement of Actions by or on Behalf of Infants or Incompetents, Wrongful Death Actions, and Conscious Pain and Suffering Actions") and Rule 1207 et seq. of the Civil Practice Laws and Rules for the State of New York.

5. Nothing contained herein shall be deemed to be an admission by the defendants that in any manner or way violated plaintiffs' rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

6. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

7. Plaintiffs agree to hold harmless the City of New York, Juan Ortiz, Michael Diaz, Kenneth Baker, Christopher Jones, Sean Case, John Santiago, Paul Zaino, and Richard Laudman, regarding any liens or past and/or future Medicare payments, presently known or unknown in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check, naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

8. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written

agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

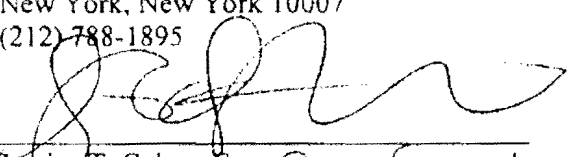
Dated: New York, New York
July 7, 2010

Reibman & Weiner
Attorneys for Plaintiffs
26 Court Street, Suite 1005
Brooklyn, New York 11242

By: 

Michael Lumer, Esq. (ML-1947)
Attorney for Plaintiffs

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
Attorney for Defendants
100 Church Street, Rm.
New York, New York 10007
(212) 788-1895

By: 

Jessica T. Cohen, Esq. Steve Stavridis, Esq.
Assistant Corporation Counsel

Dated: New York, New York
~~July~~
Nov. 12, 2010

SO ORDERED:


HON. RICHARD J. SULLIVAN
UNITED STATES DISTRICT JUDGE